



EMPLOYMENT AGREEMENT

This Employment Agreement ("**Agreement**") is made on **April 01, 2021** by and between:

TaskUs India Private Limited, a private limited company incorporated under the provisions of the Companies Act, 1956/2013 and having its **CIN: U74999MH2019FTC318980** and **Registered Office: 1102 Level 11, Tower B, Peninsula Business Park, S.B. Road, Lower Parel, Mumbai 400013, India**. Hereinafter referred to as "**Company**", which expression shall, unless it is contrary to the context or meaning thereof, be deemed to mean and include its successors and assigns; and

Kanak Nagar residing at **D/O Netram Nagar, 28, Ward No 03, Village Parkhedhi, Obaidullaganj, VTC: Genhukheda, PO: Tamot, Sub District: Goharganj, District : Raisen, State: Madhya Pradesh - 464990**, with identification type **Aadhar** and no. **900116426813** hereinafter referred to as the "**Employee**".

The Company and Employee shall hereinafter jointly be referred to as the "**Parties**" and severally as the "**Party**".

Recitals:

- A. Whereas, the Company is engaged in the business of, *inter alia*, business process outsourcing ("**Business**") and
- B. Based on the disclosures and representations made by the Employee, including, but not limited to, academic education, background and work experience, the Company desires to engage the Employee and the Employee desires employment at the Company; upon the terms and conditions contained in this Agreement and the Company's Policies (as defined hereinafter).

NOW, THEREFORE, IN CONSIDERATION OF THE MUTUAL PROMISES SET FORTH HEREIN, THE COMPANY AND THE EMPLOYEE HEREBY AGREE AS FOLLOWS:

1. DEFINITIONS AND INTERPRETATION

In this Agreement:

- 1.1 "**Affiliate**" means any Person that directly or indirectly through one or more intermediaries, controls or is controlled by or is under the common control as that of the Company;
- 1.2 "**Competitor**" means and includes all such Persons whether domestic or foreign, which carry on or which are likely to carry on business similar to the Business as defined herein above and/or directly or indirectly compete or have the potential to compete with the Company;
- 1.3 "**Confidential Information**" means and includes, information which is confidential and proprietary to the Company and/or Affiliates and/or to certain third parties with which the Company and/or Affiliates has relationships, and disclosed to or obtained by the Employee from the Company and/or Affiliates and/or such third parties, whether (without limitation) in graphic, written, electronic or machine readable form on any media or orally and whether or not the information is expressly stated to be confidential or marked as such and includes, but is not limited to information of value or significance to the Company and/or Affiliates and/or its Competitors (present or potential) such as Company's Intellectual Property; content; data; techniques; plans; designs; programs; customer information; identity and job descriptions of Company personnel; the Company's organizational structure; financing relationships or terms; service provider or vendor relationships or terms; processes; methodologies; compensation or bonus data; the terms of this Agreement; or other information not in the public domain pertaining to the Business or affairs of the Company or of any of its Affiliates; but does not include information: (i) that is in the public domain other than by Employee's breach of this Agreement and/or of any other agreement to which the Employee is

A handwritten signature in black ink, appearing to read 'Kanak', is written over the bottom right portion of the text in the 1.3 definition.

bound by; (ii) that was previously known by Employee, as established by written records of the Employee prior to receipt of such information from the Company and (iii) that was lawfully obtained by the Employee from a third party without any obligations of confidentiality to Company;

- 1.4 **"Company Policies"** shall mean the policies and procedures of the Company as specified in Clause 10 of this Agreement;
- 1.5 **"Intellectual Property"** includes ideas, concepts, creations, discoveries, inventions, improvements, know how, trade or business secrets; trademarks, service marks, designs, utility models, tools, devices, models, methods, procedures, processes, systems, principles, algorithms, works of authorship, flowcharts, drawings, books, papers, models, sketches, formulas, teaching techniques, electronic codes, proprietary techniques, research projects, and other confidential and proprietary information, computer programming code, databases, software programs, data, documents, instruction manuals, records, memoranda, notes, user guides; in either printed or machine-readable form, the whether or not copyrightable or patentable, or any written or verbal instructions or comments;
- 1.6 **"Intellectual Property Rights"** or **"IPRs"** include (i) all rights, title, and interest under any statute or under common law including patent rights; copyrights including moral rights; and any similar rights in respect of Intellectual Property, anywhere in the world, whether negotiable or not; (ii) any licenses, permissions and grants in connection therewith; (iii) applications for any of the foregoing and the right to apply for them in any part of the world; (iv) right to obtain and hold appropriate registrations in Intellectual Property and, (v) all extensions and renewals thereof; (vi) causes of action in the past, present or future, related thereto including the rights to damages and profits, due or accrued, arising out of past, present or future infringements or violations thereof and the right to sue for and recover the same;
- 1.7 **"Person"** or **"Persons"** means an individual, corporation, partnership, limited liability company, association, trust or other entity or organization, including a government or political subdivision or an agency or instrumentality thereof that is not a party to this Agreement;
- 1.8 **"Property"** includes, but is not limited to the:
- 1.8.1 internal memoranda, computer equipment (including software), training materials, books, and all other like property, including all copies, duplications, replications, and derivatives of such property which embody Confidential Information and Intellectual Property or any other information concerning the Business of the Company, whether such documents have been prepared by the Company or any other Person;
- 1.8.2 papers, blueprints, drawings, specifications, pen drives, laptops, keys, pass cards, identification cards, photographs, charts, graphs, notebooks, customer lists, computer disks, tapes or printouts, sound recordings and other printed, typewritten or handwritten documents, sample products, prototypes and models or any other property belonging to the Company and/or its Affiliates.
- 1.8.3 any residential accommodation, automobile, furniture, fixtures, fittings and furnishings, communication equipment, and all other items; and,
- 1.8.4 any tangible expression of Confidential Information, including, without limitation, photographs, plans, notes, renderings, journals, notebooks, computer programs and samples relating thereto;
- 1.9 Unless the context of this Agreement otherwise requires (i) words of any gender include each other gender; (ii) words using the singular or plural number also include the plural or singular number, respectively; (iii) the terms "hereof," "herein," "hereby" and derivative or similar words refer to this



entire Agreement; (iv) whenever this Agreement refers to a number of days, such number shall refer to calendar days unless otherwise specified; (v) headings are used for convenience only and shall not affect the interpretation of this Agreement; and (vi) references to the Recitals, Clauses and Appendices shall be deemed to be a reference to the recitals, clauses and appendices of this Agreement.

2. **CONDITIONAL EMPLOYMENT, DESIGNATION AND PROBATIONARY PERIOD**

- 2.1 The Company hereby employs the Employee as Title/Designation **Teammate** at location **6th Floor, C-21 Business Park, Pushp Vihar Colony, Scheme No 131, Indore, Madhya Pradesh 452010** upon the terms and conditions set forth in this Agreement and the Company Policies, with effect from **April 01, 2021** or such other date as may be mutually agreed ("**Date of Employment**"). The Employee shall initially report into **Team Leader**.
- 2.2 Notwithstanding the aforesaid or anything to the contrary, the Employee's employment with the Company is contingent upon (1) successful completion by the Company of the Employee's background and reference checks; (2) the Employee's full and complete disclosure to the Company of any and all agreements (non-competition, non-solicitation, employment, confidentiality or otherwise) with any prior employer, clients, principals, partners or others which in any way may limit the Employee either contractually or otherwise from engaging in any business activities required or contemplated by the Company in this Agreement; and (3) there being no pending claims, actions, suits or proceedings against the Employee which might reasonably be expected to have an adverse effect on the Employee's ability to perform his/her duties towards the Company hereunder and/or on the Company. The Company reserves the right to terminate the Employee's employment without any obligation whatsoever in the event that it receives any negative background or reference check results or determines that any contractual or other obligation may limit the Employee's ability to engage in business activities for the Company or if the Employee is found to be part of any pending investigation (whether judicial, quasi-judicial or otherwise).
- 2.3 The Employee's employment with the Company will be subject to a probationary period of 3 months. After 3 months, an employee shall be deemed to be confirmed and out of probationary period unless the Company extends the period of probation in writing. The Company may, at its sole discretion, extend this probationary period for whatever period the Company deems appropriate. Notwithstanding anything aforesaid, if the Employee is serving his/her probationary period, the employment can be terminated by the Company immediately, without giving any notice to the Employee. However, in case the Employee wishes to terminate the Employment during such period, the Employee shall give at least seven (7) days' written notice to the Company. In such an event, the Company may, at its sole discretion, permit the Employee to leave service during the period of notice without any salary in lieu of notice or pro-rated salary for the balance notice period as per this Clause.

3. **DUTIES AND RESPONSIBILITIES, TRANSFER, CONFLICTS, ETC.**

- 3.1 The Employee hereby agrees and undertakes to perform various duties and undertake various responsibilities as may be required by the Employee's reporting officers, from time to time. The Employee is expected and required to devote the whole of his/her working time and attention to the Company to the best of his/her skills and abilities to promote the interests and welfare of the Company.
- 3.2 The Employee's regular expected working hours shall be up to 10 hours per day and 48 hours per week. The Employee acknowledges and agrees that his/her remuneration detailed in Clause 4 sufficiently covers any and all working hours necessary for the successful completion of the job duties and the business needs of the Company.
- 3.3 The Company may, at its sole discretion, second, depute, assign and/or transfer the Employee to any other office of Company in India or overseas or to any Affiliates of the Company or to any third



parties. The Employee may also be required to make visits and travel both within India and overseas, as may be necessary for the proper discharge of his/her duties.

- 3.4 While in the employment of the Company, the Employee is not allowed to be employed in any other organization on a permanent, temporary or part-time basis or offer his/her services with or without consideration to any physical person, legal entity or public authority or be occupied in the Employee's own business, without the prior written consent of the Company. The Employee shall comply with all directions given to the Employee by the Company and faithfully observe all the rules, regulations, and arrangements applicable to the Employee.
- 3.5 The Employee is required to disclose in writing to the Company all of the Employee's business interests, if any, whether or not they are similar to or in conflict with the business(es) or activities of the Company and all circumstances, in respect of which there is or there might in the future be a conflict of interest between the Company and the Employee or any of Employee's immediate relatives. The Employee agrees to disclose fully to the Company in writing any such interests or circumstances, which may arise during Employee's employment immediately upon accruing of such interest or occurring of any such circumstances.
- 3.6 During the term of the Employee's employment with the Company, the Employee is required to be medically fit to perform the services assigned to the Employee from time to time. As to whether the Employee is medically fit, is an issue, which will be professionally determined, by the Company and the Employee shall be bound by such determination. The Employee may accordingly be required to undergo periodical medical examination as and when directed by the Company.
- 3.7 During the term of employment and at all times thereafter, the Employee will not make any false, defamatory or disparaging statements about the Company, or the employees, officers or directors of the Company that are reasonably likely to cause damage to any such entity or person.
- 3.8 The Employee will also be governed by statutory laws enacted by the government or local authorities as may be applicable from time to time. The Employee shall comply with all applicable laws, regulations, and governmental orders of India, now or hereafter in effect, relating to the Employee's employment by the Company, including but not limited to the provisions of the Prevention of Corruption Act, 1988 of India, the Foreign Corrupt Practices Act, 1977 of the United States of America and the Bribery Act 2010 of the United Kingdom. Without limiting the generality of the foregoing, the Employee represents and covenants that the Employee has not, and shall not, at any time, during his employment with the Company, pay, give, or offer or promise to pay or give, any money or any other thing of value, directly or indirectly, to, or for the benefit of: (i) any public servant, government official, political party or candidate for political office; or (ii) any other person, firm, corporation or other entity, with knowledge that some, or all of that money, or other thing of value will be paid, given, offered or promised to a public servant, government official, political party or candidate for political office, for the purpose of obtaining or retaining any business, or to obtain any other unfair advantage, in connection with the Company's business.

4. REMUNERATION AND BENEFITS

- 4.1 The Employee shall be entitled to an all-inclusive remuneration and a detailed break-up of remuneration has been provided in **Annexure 1**. The Company may change the remuneration package or compensation structure from time to time.
- 4.2 The Company may withhold or deduct from any amounts payable under the Agreement such taxes and/or contributions as may be required to be withheld or deducted pursuant to any applicable law or regulation. In case of any under-withholding, the Employee shall be responsible to pay the necessary tax or contributions and any interest / penalty thereon.

